The Ag Gag Laws: Hiding Factory Farm Abuses From Public Scrutiny

CODY CARLSON | MAR 20, 2012 | HEALTH

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A former HSUS investigator details the dangers of HR 589, makes it illegal for investigative reporters to take jobs at factory farms in Iowa.

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Earlier this month, politicians in Iowa bowed to corporate pressure when they passed a law designed to stifle public debate and keep consumers in the dark. Instead of confronting animal cruelty on factory farms, the top egg- and pork-producing state is now in the business of covering it up. As one of the people this new law is designed to silence, I'm concerned that Iowa is shooting the messenger while letting the real criminals go unpunished.

HF 589 (PDF), better known as the "Ag Gag" law, criminalizes investigative journalists and animal protection advocates who take entry-level jobs at factory farms in order to document the rampant food safety and animal welfare abuses within. In recent years, these undercover videos have spurred changes in our food system by showing consumers the disturbing truth about where most of today's meat, eggs, and dairy is produced. Undercover investigations have directly led to America's largest meat recalls, as well as to the closure of several slaughterhouses that had egregiously cruel animal handling practices. Iowa's Ag Gag law -- along with similar bills pending in other states -- illustrates just how desperate these industries are to keep this information from getting out.

The original version of the law would have made it a crime to take, possess, or share pictures of factory farms that were taken without the owner's consent, but the Iowa Attorney General rejected this measure out of First Amendment concerns. As amended, however, the law achieves the same result by making it a crime to give a false statement on an "agricultural production" job application. This lets factory farms and slaughterhouses screen out potential whistleblowers simply by asking on job applications, "Are you affiliated with a news organization, labor union, or animal protection group?"

The Ag Gag laws protect the slaughterhouses that regularly send

sick and dying animals into our food supply, and would prevent some of the biggest food safety recalls in U.S. history.

Sound absurd? Two years ago, I had to answer a similar question when I applied to work at the nation's second biggest egg producer, located in Thompson, Iowa. If the Ag Gag law had been in effect then, I might be writing this article from a cell.

GUARDING THE HENHOUSE

As a Humane Society of the United States investigator, I worked undercover at four Iowa egg farms in the winter of 2010. At each facility, I witnessed disturbing trends of extreme animal cruelty and dangerously unsanitary conditions. Millions of haggard, featherless hens languished in crowded, microwave-sized wire cages. Unable to even spread their wings, many were forced to pile atop their dead and rotting cage mates as they laid their eggs.

Every day, I came to work wearing a hidden pinhole camera, using it to film conditions as I went about my chores. Once I quit, the Humane Society released a video of my findings that showed viewers the everyday, routine conditions in modern egg factories. Although nothing I filmed was illegal (since Iowa's anemic animal cruelty law exempts "customary farming practices"), the video was alarming enough to make national headlines.

A few months later, Iowa's egg farms were in the news again when nearly identical conditions were found at several other locations, this time by the Food and Drug Administration (FDA). The farms were at the center of a massive salmonella outbreak that caused the biggest egg recall in United States history.

Barely a year after that is when things truly began to change. Tired of defending the indefensible, the egg industry's largest trade group made a deal with the Humane Society and together they proposed a federal law that would provide more transparency and better conditions for the 280 million hens on America's egg farms. That bill -- H.R. 3798 -- is now before Congress, proving that meaningful progress is possible when transparency, democracy, and dialogue are allowed to occur.

But without investigations like the ones I did in Iowa, the impetus behind this progress would be gone. At least, that's the hope of groups like the Iowa Poultry Association and Minnesota Pork Producers, each of which helped draft the Ag Gag laws and oppose the federal hen protection bill. They and their backers at Monsanto and Dupont don't want anything to change at all. They prefer having no rules on how they treat animals and no one from the public second-guessing what they do.

IGNORANCE ISN'T BLISS

The Ag Gag laws pretend to be about preventing "fraud," but they actually perpetuate it. They protect a system where consumers are regularly deceived into supporting egregious animal suffering, deplorable working conditions, and environmental degradation.

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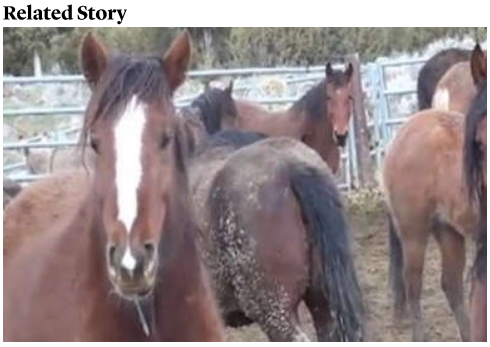

Should It Be Illegal to Film Animal Abuse?

They protect guys like Billy Jo Gregg, a dairy worker who was convicted of six counts of animal cruelty in 2010 after being caught punching, kicking, and stabbing restrained cows and calves at an Ohio farm.

They protect the North Carolina Department of Agriculture official who recently pled guilty to obstruction of justice after tipping a Butterball turkey plant off to a police investigation. The investigation, based on Mercy For Animals' undercover

footage, also resulted in seven arrests for felony and misdemeanor animal cruelty.

Perhaps most egregiously, the Ag Gag laws also protect the slaughterhouses that regularly send sick and dying animals into our food supply, and would prevent some of the biggest food safety recalls in U.S. history.

But they don't protect the USDA inspector that had his job threatened after reporting these violations. That inspector had to tip off a Humane Society investigator, and only then was the plant closed.

In short, the Ag Gag laws muzzle the few people that are telling the truth about our food. With no meaningful state or federal laws to regulate industrial animal farms, they take away one of the only forms of public accountability this multi-billion dollar industry has ever faced. Now, the foxes are truly guarding the henhouse.

Iowa's farm animals may now be out of sight, but they don't have to be out of mind. People can still see from recent investigations in Iowa just how much the meat industry has to hide, and they can decide for themselves if it's something they want to support when they sit down to eat.

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